

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Emerald Health Services, Inc.

The instant motion raises the same issues and seeks the same *result* as Mr. Breed's Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

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James Keener et al v. DB Insurance Co., LTD

26CV000162

MOTION OF DEFENDANT DB INSURANCE CO., LTD. (U.S. BRANCH) TO DISMISS OR STAY THIS ACTION PENDING THE OUTCOME OF THE EARLIER FILED FEDERAL COURT CASE

TENTATIVE RULING: The Court finds that the interests of justice, judicial economy, and comity are best served by hearing and resolving the instant motion after resolution, by the U.S. District Court for the Northern District of California (District Court) of James Keener's pending Motion to Stay the Federal Action (Federal Motion). The Court, therefore, sets the matter for an OSC re: Federal Motion on August 20, 2026, at 8:30 a.m. in Dept. A. Should the District Court issue a ruling on the Federal Motion prior to the OSC hearing, Plaintiff is directed to file a copy thereof in this action in the form of a Request for Judicial Notice. The Court will not hear the instant motion on August 20, 2026, but may, on that date and as appropriate, set the matter for hearing and request additional briefing.

The Case Management Conference is continued to October 8, 2026, at 8:30 am in Department A.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendant DB Insurance Co., Ltd. (U.S. Branch), (DBIC) moves, pursuant to principles of comity, for an Order granting its motion to dismiss or stay the instant action, filed by Plaintiff James Keener, pending resolution of the action that DBIC filed first in the United States District Court for the Northern District of California involving overlapping issues.

DBIC's request for judicial notice is GRANTED. The Court takes judicial notice of the Complaint filed October 30, 2025, in the matter *DB Insurance Co., Ltd. (U.S. Branch) v. Keener, et al.*, bearing Case No. 3:25-cv-09343-TSH, in the District Court (Federal Action and Federal Complaint), but not for the truth of any matters alleged therein. The Court takes judicial notice that, through the Federal Complaint, DBIC seeks to rescind the same insurance policy (Policy) at issue in the instant litigation. (*Id.* at ¶ 13.)

The instant litigation was commenced January 26, 2026, by the filing of the original Complaint by Plaintiff James Keener, both individually and as Trustee for the James H. Keener 401K Profit Sharing Plan.

The gravamen of the instant action is that Plaintiff James Keener, in his individual capacity as well as in his capacity as Trustee of the James H. Keener 401k Profit Sharing Plan, suffered damages as a result of DBIC's breach of the Policy. (See, generally, First Amended Complaint for Damages (FAC).) The alleged damages stem from a worker's compensation claim made by Ruben Rueda Marquez, who is alleged to have been hired by Mr. Keener to do tree work at the subject property. (See *id.* at ¶¶ 17-22.) Mr. Keener alleges that he tendered the claim to DBIC, and co-defendant Aegis General Insurance Agency (Aegis) and the defendants failed and refused to defend Plaintiff against the claims. (See *id.* at ¶ 23.) Based on these allegations, Mr. Keener asserts claims against DBIC and Aegis for breach of the Policy including breach of the implied covenant of good faith and fair dealing, and declaratory relief relating to the parties' respective duties and obligations under the Policy. He also asserts a claim against Mr. Marquez for fraud / intentional misrepresentation arising from allegations that Mr. Marquez represented himself as a licensed and bonded contractor.

"A plaintiff can maintain concurrent state and federal court actions arising from the same facts and circumstances [Citation], albeit the plaintiff risks having his or her state court or federal court action barred by *res judicata* if a judgment is rendered in the other case." (*Benitez v. Williams* (2013) 219 Cal.App.4th 270, 276.) "It is black letter law that, when a federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion but not the obligation to stay the state court action." (*Caiafa Professional Law Corp. v. State Farm Fire & Casualty Co.* (1993) 15 Cal.App.4th 800, 804 (*Caiafa*).) "'In exercising its discretion, the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.'" (*Ibid* quoting *Farmland Irrigation Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.) Finally, the fact that the Federal action is pending in a Federal Court in California weighs in

favor of staying the state court action in favor of the Federal action.” (See *Caiafa, supra*, at p. 804; see also *Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 747.)

Mr. Keener’s Request for Judicial Notice is GRANTED as to Exhibit 4. The Court takes judicial notice of Mr. Keener’s Notice of Motion to Stay Federal Proceedings filed in the Federal Action on May 7, 2026, but not for the truth of any matters set forth therein.⁷ The Court agrees with Mr. Keener that the U.S. District Court’s ruling on the pending Federal Motion may well impact the ongoing relevance and applicability of, and/or this Court’s analysis of, the instant Motion. The Court notes that, just as the Federal Action was filed prior to the instant action, the Federal Motion was filed prior to the instant Motion.

Based on the foregoing, the Court finds that the interests of justice, judicial economy, and comity are served by hearing and resolving the instant motion after resolution of the Federal Motion.

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Vladimir Privalov v. Villa Zinfandel LLC et al

26CV000675

DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to July 31, 2026, at 8:30 a.m. in Dept. B. The Court has reviewed Defendant’s Notice of Non-Service of Opposition, which asserts that it did not receive any opposition from Plaintiff and requests that any opposition be disregarded. The Court notes that there is an opposition on file, accompanied by a Proof of Service showing timely service on Defendant. Thus, the Court declines to grant Defendant’s request to disregard the Opposition. Rather, Plaintiff is ordered to immediately serve, no later than 4:00 p.m. on July 10, 2026, the file-endorsed copy of his opposing papers. Defendant is granted leave to file and serve, no later than 4:00 p.m. on July 17, 2026, a Reply.

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Thomas Kensok et al v. Alison A. Barstad

26CV000834

MOTION TO VACATE STAY OF PROCEEDINGS

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

⁷ The Court defers ruling on the remaining subjects of Mr. Keener’s Request for Judicial Notice until such time as those subjects become relevant. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“‘Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed.’ [Citation.]”].)